Arun Kumar Aggarwal vs Serious Fraud Investigation Office , on 18 January, 2023

Author: Amit Sharma

Bench: Amit Sharma

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
\+ BAIL APPLN. 3178/2022
ARUN KUMAR AGGARWAL

Through: Mr. Abhir Dutt with Mr.
Sanoriya and Mr. Manu Pa
Advocates

versus

SERIOUS FRAUD INVESTIGATION OFFICE

, .

Through: Mr. Ripudaman Bhardwaj C
with Mr. Sahaj Garg, GP
Mr. Nitin Agnihotri, Mr.
Mr. Shriram Tiwari and M
Razi, Advocates

CORAM:
HON'BLE MR. JUSTICE AMIT SHARMA
ORDER

% 18.01.2023 CRL.M.(BAIL)-39/2023 (Grant of Interim Bail) The present application under section 439 of Cr.P.C, 1973 seeks interim bail in Complaint Case no. 347/2022, registered vide Order No. F No. 5/5/2016/CL-II, under Section 447 of the Companies Act, 2013, on the ground that the wife of the petitioner has to go undergo gall-bladder surgery at Ram Manohar Lohia Hospital, New Delhi. Documents and medical record annexed in support of the application have been verified by the respondent and the status report dated 13.01.2023 with regard to the same is on record.

Learned Central Government Standing Counsel appearing on behalf of the respondent opposes the present application and submits that the surgery for which the interim bail is sought is minor in nature and the petitioner also has a 24 year old son who is capable of taking care of the petitioner s wife. It is further stated that no date for the surgery has been given.

Learned counsel appearing on behalf of the petitioner has filed further medical documents on 16.01.2023, wherein in the OPD registration card, it is mentioned that the date of surgery is fixed for 19.01.2023 and the petitioner s wife was required to be admitted to the hospital on 17.01.2023. He submits that she is in the process of getting admitted today, i.e., 18.01.2023.

Since as per the medical documents filed, the surgery is scheduled for 19.01.2023, the present application is allowed. The applicant is granted interim bail for a period of seven days from the date of release, on furnishing a personal bond in the sum of Rs. 1,00,000/- (Rupees One Lakh), to the satisfaction of the learned Trial court/Link Court, further subject to the following conditions:

i. The applicant shall provide his mobile number to the Investigating Officer and intimate about any change. ii. The applicant shall drop a pin on the Google map to ensure that his location is available to the Investigating Officer. Learned counsel appearing on behalf of the applicant further undertakes that no extension of the interim bail granted to the applicant by this order shall be sought.

The application is allowed in the aforesaid terms and disposed of accordingly.

Copy of this order be given dasti under the signatures of the Court Master.

AMIT SHARMA, J JANUARY 18, 2023/P